

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” or “Respondent”) (NBG, together with ONE, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report in further support of the Parties’ pending April 3, 2026 Joint Motion to Extend Deadlines. Since the filing of the Parties’ January 1, 2023 Joint Status Report, the Parties have exchanged requests for productions of documents (RFPs) and interrogatories, submitted objections and responses to those RFPs and interrogatories, negotiated and executed an ESI Protocol, worked together to finalize a proposed Protective Order, and coordinated with respect to eDiscovery. Pursuant to 46 C.F.R. § 502.64(a), the Parties attended a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) and have scheduled a follow-up conference for May 14, 2026. The Parties have made progress in their document collection and have met with their respective eDiscovery vendors multiple times to begin or continue their rolling productions. Complainant made an initial production of documents and electronically stored information (ESI) to Respondent on April 7, 2026, and anticipates making a second and third production in the coming days. Respondent

continues to work closely with their e-discovery partners to begin producing documents in the very near future. At present, Respondent is currently in the process of considering as many as 1.4 million documents for relevancy.

In order to avoid prejudice to both Complainant and Respondent in their respective abilities to complete necessary fact discovery, prepare for depositions on the basis of a full documentary record, and present to the Presiding Officer adequate and appropriate briefing of the issues for decision in this case, the Parties respectfully reiterate their joint request that the Presiding Officer grant their Joint Motion to Extend Deadlines and adopt the revised deadlines contained therein.

Dated: April 24, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

MONTGOMERY McCracken Walker &
Rhoads LLP

/s/ John Mitchell

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
Mohini P.B. Rarrick
(818) 235-9753
mpriya@huthreynolds.com
Jack Mitchell
(845) 803-3655
jmitchell@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant Nielsen &
Bainbridge, LLC*

/s/ Timothy Semenoro (with permission)

Timothy Semenoro
tsemenoro@mmwr.com
Wook Chung
wchung@mmwr.com
Robert O'Connor
roconnor@mmwr.com
Kaspar Kielland
kkielland@mmwr.com
Matteo Bonuzzi
mbonuzzi@mmwr.com
437 Madison Avenue
New York, NY
(212) 867-9500

*Counsel for Respondent Ocean Network
Express Pte. Ltd.*